

William, Earl of *Derby*, as of his manor of *Wolton*, in socage, by fealty and $2\frac{1}{4}d.$ rent, and are worth per ann. (clear) 20s.

James Clegge died at *Butterworth* 13 Oct., 19 James [1621], and *James Clegge*, his son and next heir, is aged at the time of taking this Inquisition 28 years and more.

Robert Tippinge, of Irlam, Gentleman.

Inquisition taken at *Boulton* in le mores, 26 April, 21 James [1623], before *Edward Rigby*, Esq., after the death of *Robert Tippinge*, late of *Irlam*, gentleman, by the oath of the same Jurors, who say that *Robert Tippinge* was seised in fee of 1 messuage, 5 acres of land, 4 acres of meadow, and 5 acres of pasture in *Irelame*,¹ and of a close of land in *Irelame*, containing 1 acre of land, within the manor of *Barton* upon *Irwell*.

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The messuage and 5 acres of land, &c. in *Irelam* are held of *Edmund Lathome*, gentleman, in free socage by fealty and the payment of 1 pair of white gloves, and are worth per ann. (clear) 26s. 8d. The close of land in *Irelam* is held of *the King*, as of his Duchy of *Lancaster*, by the 50th part of a knight's fee, and is worth per ann. (clear) 4s.

Robert Tippinge died 1 Dec. last past [1622], and *George Tippinge*, his son and next heir, is aged at the time of taking this Inquisition 9 years and 3 months and no more.

James Hoult, Gentleman.

Inquisition taken at *Bolton* in le Mores, 26 April, 21 James [1623], before *Leonard Ashawe*, *Savil Radcliffe*, *Oswald Mosley*, *Edward Rigby*, and *John Haworth*, Commissioners, after the death of *James Hoult*, gentleman, by the oath of *Edmund Ashton*, *Edward Rosthorne*, *Edward Butterworth*, and *John Cudworth*, Esquires, and *Robert Ainsworth*,

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¹ In Eccles parish.

Samuel Bamford, Lawrence Browncl, Christopher Anderton, James Walmisley, Giles Ainsworth, James Crompton, Francis Isherwood, Thomas Bordman, Robert Leaver, Richard Ashawe, Roger Grundie, Edward Greenehalgh, Thomas Kershawe, Robert Bolton, John Brooke, and Arthur Bromeley, gentlemen, who say that long before the decease of *James Holt*, one *Francis Holt*, Esq. (deceased), late great-grandfather of the said *James*, was seised in fee of the manors of Gristlehurst,¹ Spotland,² Fortune,³ and Steed;⁴ also of 200 messuages, 20 tofts, 4 mills, 1,050 acres of land, 80 acres of meadow, 1,000 acres of pasture, 40 acres of wood, 1,000 acres of furze and heath, 50 acres of moor, 300 acres of turbary, and 200 acres of moss in Gristlehurst, Spotland,² Wostenholme, ffallinge,² Whitworth,² Rossendale,⁵ Ratchdale, Bamford,¹ Steede, Ribchester, Fortune, Bury, Hundersfield,² and Middleton.

Francis Holt, being so seised, a Fine was levied at Lancaster on Monday in the fifth week of Lent, 30 Eliz. [1588], between *Edward Littleton, John Culcheth*, and *Charles Holt*, Esqs., and *Richard Lee*, plaintiffs, and the said *Francis Holt* and *Ellen* his wife, and *Thomas Holt*, then son and heir apparent of *Francis Holt* and grandfather of *James* (named in the Commission), and *Constance* his wife, deforciant, of the aforesaid manors, messuages, &c., whereupon a plea of covenant was summoned between them in the said Court, to wit, that *Francis* and *Ellen*, *Thomas* and *Constance* acknowledged the manors and tenements aforesaid to be the right of *Edward Littleton* as those which he *John Culcheth, Charles Holt*, and *Richard Lee* had of the gift of the said *Francis* and *Ellen*, *Thomas* and *Constance*, and the same remised and quit-claimed for themselves and their heirs to *Edward*, &c., and to the heirs of *Edward* for ever: which Fine was levied of the manors and tenements aforesaid to the uses and limits expressed in a certain Indenture dated 7 March, 30 Eliz. [1587-88], and made between *Francis Holt* and *Ellen* his wife, and *Thomas Holt* and *Constance*, then his wife, of the one part, and *Ellen Littleton*, widow, late wife of *Edward Littleton*, Knt., deceased, of the other part; viz. as to the manor of

¹ In Middleton parish.

³ In Cockerham and Garstang parish.

⁵ In Whalley parish.

² In Rochdale parish.

⁴ In Ribchester parish.

Steed, and other the premises in Steed and Ribchester, 10 messuages, 1 mill, 200 acres of land, 40 acres of meadow, and 100 acres of pasture in Spotland, Radchdale, and Whitworth to the use of *Thomas* and *Constance* for their lives and the life of the survivor, in the name of jointure for the said *Constance*; and after the decease of both of them then to the use of *Francis*, son and heir apparent of *Thomas* in tail male; and for default then to the several and successive uses of divers persons mentioned in the Indenture in tail male; and for default then to the use of the right heirs of *Francis* for ever. As to the manor of Gristlehurst, and 40 messuages, 3 mills, 300 acres of land, 100 acres of meadow, and 300 acres of pasture in Gristlehurst, Bury, Middleton, Bamford, Spotland, and Ratchdale (parcel of the premises whereof *Francis*, the great-grandfather, was seised as aforesaid) to the use of *Francis* and *Ellen* for their lives; and then to the use of *Thomas* for his life, and after his decease to the use of *Francis* and his heirs male, with remainders as aforesaid. As to the manor of Fortune and other the hereditaments in Fortune, and 7 other messuages, 100 acres of land, 50 acres of meadow, and 100 acres of pasture in Spotland (other parcel of the aforesaid premises) to the use of *Francis Holt* (the great-grandfather) for his life, and after his decease to the use of *Edmund Holt*, his younger son, for his life, and then to the use of *Thomas* for his life, and after his decease to the use of *Francis* and his heirs male, with remainders as aforesaid. *Edmund* still survives at Ratchdall. As to 6 other messuages, 100 acres of land, 20 acres of meadow, and 100 acres of pasture in Spotland, Bamford, and Ratchdall (other parcel of the premises aforesaid), to the use of *Francis* for his life, and then to the use of *Thomas* for his life, and after his decease to the use of *Francis* (father of *James*) in tail male, with remainders as aforesaid. As to 9 other messuages, 100 acres of land, 20 acres of meadow, and 80 acres of pasture in Whitworth and Spotland (other parcel of the premises aforesaid) to the use of *Francis* for his life, and after his decease to the use of *Francis*, another younger son, for his life, and after his decease to the use of *Thomas* for his life, and then to the use of *Francis*, with remainders as aforesaid. *Francis*, the younger, still survives at Ratchdall. As to 11 other

messuages, 140 acres of land, 30 acres of meadow, 100 acres of pasture, and 1 mill in Spotland, Whitworth, and Ratchdall (further parcel of the premises aforesaid) to the use of *Francis* for his life, and after his decease to the use of *Ralph*, his 3rd son, for his life, with remainders as aforesaid. As to 9 other messuages, 100 acres of land, and 100 acres of pasture in Whitworth and Spotland (other parcel of the premises aforesaid) to the use of *Francis* for his life, and after his decease to the use of *John*, his 4th son, for his life, with remainders as aforesaid. As to 9 other messuages, 100 acres of land, 10 acres of meadow, and 100 acres of pasture in Spotland and Whitworth to the use of *Francis*, and then to the use of *Edward*, his 6th son, with remainders as aforesaid. The said *Edward* died long before his father. As to the residue of all the manors, &c., aforesaid to the use of *Francis* (the great-grandfather) for his life, and then to the use of *Thomas* for life, and then to the use of *Francis*, and then to the use of divers persons (mentioned in the Indenture), and, lastly, to the use of the right heirs of *Francis* for ever, as by the Indenture shown to the Jurors appears; by the which Indenture it was among other things agreed: that it should be lawful for *Thomas Holt*, by his will or by deed, to give to every of his younger sons an annuity of £5, issuing out of all the said manors, subject to the conditions therein specified. By virtue of which Fine and Indenture, and by force of the Statute of Uses, *Francis* and *Ellen*, and *Thomas* and *Constance* were severally and respectively seised of the manors, lands, &c. for the terms of their lives with the remainders and reversions expectant thereupon as aforesaid.

Thomas Holt, being so seised for his life of the remainder of the manor of Gristlehurst, and other the premises in Gristlehurst, Bury, &c. (limited to the use of *Francis* and *Ellen* for their lives) with remainder to *Francis* (father of *James*) in tail male, a Fine was levied in the Court at Lancaster on Monday, 29 Aug., 1 James [1603], between *Edmund Hopwood*, Esq., plaintiff, and *Thomas Holt* and *Francis Holt*, deforciant, of the aforesaid manor of Gristlehurst, and other the aforesaid messuages, &c. in Gristlehurst, Bury, &c.; whereupon a plea of covenant was summoned between them to wit, *Thomas* and *Francis* acknowledged the manor and

tenements aforesaid to be the right of *Edmund* as those which he had of their gift, and the same remised for them and their heirs to *Edmund* and his heirs for ever : which Fine was levied to the use of *Thomas* during the life of *Francis* (if he should so long live), and upon the determination of the aforesaid estate limited to *Thomas*, then to the use of *Katherine*, wife of *Francis* (father of *James*) for her life as her dower ; and after her decease to the use of *Francis* in tail male ; and for default to the use of divers persons (mentioned in the Indenture) in tail male ; and, lastly, to the use of the right heirs of *Francis* (the great-grandfather) for ever. *Katherine* still survives at Ratchdale. By virtue whereof, and by force of the Statute of Uses, *Thomas Holt* was seised of the remainder of the premises aforesaid, with remainders as aforesaid.

By deed, dated 5 Nov., 7 James [1609], in consideration of his love for *Edward*, his 3rd son by *Constance*, and for his better maintenance, and according to the power reserved to him in the last-mentioned Indenture, *Thomas Holt* granted to him an annuity of £5 for his life, and by the same deed, and for the same considerations, granted him another annuity of £3 for the term of his life, issuing out of divers lands in Whitworth, Rossendale, and Spotland, and out of all other his lands in Lancashire.

By another deed, bearing even date with the last, and for the same reasons, he granted to *Thomas*, his second son, two several annuities of £5 and £3 for his life, issuing out of lands in Whitworth, Rossendale, and Spotland, and all his other lands. *Edward* and *Thomas* still survive at Rachdale. Afterwards, *Francis* and *Ellen* died, and *Thomas* survived them ; after that, *Thomas* and *Constance* died, after whose death *Francis* was seised in freehold for the life of *Katherine*, with remainder to him and his heirs male, and with remainders as aforesaid as to the premises in Gristlehurst, &c.

Francis Holt was also seised in fee-tail, viz. to himself and his heirs male, of the manor of Steed, and other lands and tenements in Steed and Ribchester ; also of the 10 messuages, &c. in Spotland, Rachdale, and Whitworth (limited to the use of *Thomas* and *Constance*) ; also of the 9 other messuages &c. in Spotland and Whitworth (limited to the use of

Francis, the great-grandfather, with remainders as aforesaid); also of the residue of all the manors, &c. first severally and respectively limited to the uses of *Edward*, *Francis*, *Ralph*, and *John*, his younger sons.

Francis (father of *James*), being so seised, a Fine was levied in the Court of Lancaster on Monday in the 4th week of Lent, 7 James [1609], between *Edward Littleton*, Knt., *Thomas Holcrofte*, Knt., and *Theophilus Ashton*, Esq., plaintiffs, and *Francis Holt*, deforciant, of all and singular the manors, &c. of which he (*Francis*) was seised in possession or remainder [here they follow by name], whereupon a plea of covenant was summoned between them, viz. *Francis* acknowledged the manors aforesaid to be the right of the said *Edward* as those which he *Thomas* and *Theophilus* had of his gift, and the same remised for himself and his heirs to them and the heirs of *Edward* for ever, which said Fine was levied to the use of *Francis* (father of *James*) for his life without impeachment of waste; and, after his decease, to the use of *James* (named in the commission) and his heirs male; and for default to the use of *William*, 2nd son of *Francis*, and his heirs male; and for default to the use of *Theophilus*, his 3rd son, in tail male; and for default then to the use of the 1st to the 8th son of *Francis* in tail male; and for default to the use of any other son or sons of the said *Francis* in tail male; and for default to the use of *Francis* and his heirs male, and, lastly, to the use of the right heirs of *Francis* for ever, as by an Indenture dated 15 March, 6 James [1608-9], and made between the said *Francis* of the one part, and the said *Edward*, *Thomas*, and *Theophilus* of the other part, shown to the Jurors, appears. By virtue whereof, and by force of the Statute of Uses, *Francis* was seised of the aforesaid manors, &c. for his life, with remainders thereof as aforesaid. *Thomas* had issue by *Constance* 2 younger sons, viz. *Thomas* and *Edward*, who still survive.

Francis Holt died, so seised, at Rachdale, 28 Sept., 15 James [1617]; *James* (named in the commission) was his son and heir, and was then aged 16 years 10 months and 20 days. After whose decease, by reason of the premises and the minority of *James*, and by means of an Inquisition taken 12 Jan., 15 James [1617-18], before *Edward Rigby*, Esq.,

Escheator,¹ after the death of *Francis Holt*, the said estates were ascertained by due form of law; *James Holt*, and a 3rd part of the tenements aforesaid, then being in the custody of *the King*. After the death of *Francis*, *James* was seised of the said manors, &c., with remainders as aforesaid, and *William*, his younger brother, died during his lifetime without heirs. Afterwards, 20 Feb. last past [1622–23], *James* died without heirs; *Theophilus* is his brother and heir, and is aged at the time of taking this Inquisition 14 years 1 month and 15 days.

The manor of Steed, and other the premises in Steed and Ribchester, and the aforesaid 10 messuages, &c. in Spotland, Rachdale, and Whitworth, limited to *Thomas Holte* and *Constance* for their lives, are held of *the King* by knight's service, viz. by the 50th part of a knight's fee, and are worth per ann. (clear) £4. The manor of Grislehurst, and the 40 messuages, 3 mills, &c. in Grislehurst, Bury, Middleton, Bamford, Spotland, and Rachdale, limited, after the death of *Francis Holte*, the elder, to *Katherine*, late wife of *Francis Holte*, are held in form following, viz.—the manor of Grislehurst, and other the premises in Bury and Middleton, of *Ralph Ash*, Esq., in free socage; the hereditaments in Bamford, of the heirs of *William Bamford*, gent. (deceased), in free and common socage by fealty only; the lands and tenements in Spotland and Rachdale, of *the King* in free socage, as of his Duchy of Lancaster, by fealty only; all which manor and hereditaments last mentioned are worth per ann. (clear) £6 : 13 : 4. The manor and other the hereditaments in Forton, and the other messuages in Spotland, limited, after the death of *Francis Holte*, the elder, to *Edmund Holte*, his 5th son, for life, are held of *the King in capite* by knight's service, and are worth per ann. (clear) £5 : 13 : 4. The 6 other messuages, &c. in Spotland, Bamford, and Rachdale, limited, after the death of *Francis Holte*, the elder, to *Thomas Holte*, with remainder as aforesaid, are held in form following, viz.—the messuages, &c. in Spotland, of *the King* by knight's service (clear yearly value, 20s.); the hereditaments in Rachdale, of *the King* in free socage (clear yearly value, 10s.); the hereditaments in Bamford, of the

¹ See Part 2, page 81.

heirs of *William Bamford*, gent. (deceased), in socage by fealty only (clear yearly value, 5s.). The 9 other messuages, 100 acres of land, &c. in Whitworth and Spotland, limited, after the death of *Francis Holte* the elder, to *Francis*, his 2nd son, with remainder as aforesaid, are held of *the King* by knight's service, and are worth per ann. (clear) 53s. 4d. The 11 other messuages, 140 acres of land, &c. in Spotland, Whitworth, and Rachdale, limited to *Ralph*, 3rd son of *Francis*, for life, are held thus:—the messuages, &c. in Spotland and Whitworth, of *the King* by knight's service; those in Rachdale, of *the King* in free socage (clear yearly value, £4). The 9 messuages, &c. in Spotland and Whitworth, limited to *John Holte*, 4th son of *Francis*, for life, are held of *the King* by knight's service, and are worth per ann. (clear) 40s. The 9 messuages, &c. in Spotland and Whitworth, limited, after the death of *Francis*, to *Edward Holte*, his 6th son, for life, are held of *the King* by knight's service, and are worth per ann. (clear) 40s. As to the residue of all the manors, messuages, lands, &c. limited to *Francis Holte* the elder for life, and then to *Thomas Holte*, with remainder as aforesaid, the Jurors know not of whom they, or any of them, are held; but their clear yearly value is 20s.

Alexander Butterworth, of Belfield, Esquire.

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31 July,
1623.

Inquisition taken at Bolton in le Mores, 31 July, 21 James [1623], before *Edward Rigby*, Esq., Escheator, after the death of *Alexander Butterworth*, late of Belfield,¹ Esq., by the oath of *Richard Haughton*, *James Walmersley*, *Ralph Butterworth*, *Giles Aynsworth*, *James Chadweeke*, *William Baguley*, *Ralph Norres*, *John Butterworth*, *Miles Marsden*, *Thomas Bordman*, *Francis Isherwood*, *Robert Leaver*, *Richard Aspinall*, *Ellis Crompton*, *Edward Greenehaugh*, *Thomas Kirshawe*, *Arthur Bromeley*, *John Brooke*, *Thomas Lightbounne*, *Edmund Brooke*, and *James Isherwood*, gentlemen, who say that *Alexander Butterworth* was seised in fee of 24 messuages, 4 cottages, 1 water-mill, 28 gardens,

¹ In Rochdale parish.